

Final Order Change Log – Pensions, Children’s Education Fund, and Maintenance Pending Suit (MPS)

(Evidential work product – neutral change log)

Scope and method

This change log records **sequential, material changes** made to the draft final order between **30 April 2024 and 14 May 2024**, and identifies the position ultimately **sealed on 24 May 2024** and **approved under the slip rule on 3 June 2024**.

The table compares **pre-14 May drafts (Orders 1–4)** with the **14 May 2024 draft (Order 5)** and the **sealed/approved order (Order 6 and slip-rule order)**.

A. PENSIONS

Issue	Position in drafts prior to 14 May 2024 (Orders 1–4)	Change introduced on 14 May 2024 (Order 5)	Position in sealed / approved order (Order 6 + slip rule)
Pension mechanism	Pensions addressed by way of pension sharing orders , with provision for the applicant to receive 50% of the combined CETVs/values of specified pension arrangements.	It is stated for the first time that certain pensions are not capable of being shared pursuant to an English pension sharing order . Alternative mechanisms outside a formal PSO are introduced.	Order reflects the post-14 May structure , combining non-PSO mechanisms with PSO language, resulting in a hybrid formulation.
Notice to applicant	No indication that any pension was incapable of sharing under a PSO.	First notification to the applicant that pensions were said to be incapable of PSO occurs during order drafting.	No hearing or consultation recorded addressing this change.
Nature of change	Standard PSO framework.	Substantive change to the legal character of pension provision introduced during drafting.	Substantive change maintained.
Opportunity to respond	Drafting assumed participation in agreeing the final order.	Change introduced during a period of non-participation.	No record of applicant representations being incorporated.

B. CHILDREN'S EDUCATION FUND (PARA 38)

Issue	Position in drafts prior to 14 May 2024 (Orders 1–4)	Change introduced on 14 May 2024 (Order 5)	Position in sealed / approved order (Order 6 + slip rule)
Control of education fund	Education fund envisaged with joint control / joint safeguards , including joint signatures or mutual involvement.	Sole conduct of the education fund by the respondent is introduced, excluding the applicant from decision-making.	Sole conduct by the respondent retained.
Safeguards	Mutual consent and joint oversight.	Joint safeguards removed or substantially reduced.	Reduced safeguards maintained.
Justification recorded	No justification recorded in earlier drafts.	Change introduced on the basis that the applicant was not engaging in drafting.	No further reasoning set out in the sealed order.
Applicant participation	Assumed participation in agreeing safeguards.	Change introduced during a period of non-participation.	No mechanism in the order addressing inability to participate at the time of change.

C. MAINTENANCE PENDING SUIT (MPS) (PARA 34)

Issue	Position in drafts prior to 14 May 2024 (Orders 1–4)	Change introduced on 14 May 2024 (Order 5)	Position in sealed / approved order (Order 6 + slip rule)
Status of MPS	MPS order remained operative; enforcement requests outstanding. No provision addressing arrears.	A new provision remitting all arrears of MPS is introduced for the first time.	Remittance provision retained.
Determination process	No determination of enforcement or arrears recorded.	Remittance introduced without a hearing and without resolving enforcement requests.	No reasons for remittance set out in the order.
Notice to applicant	No prior draft provided addressing remittance of MPS.	Provision inserted during drafting.	No subsequent opportunity recorded for representations.
Participation context	Enforcement correspondence ongoing; applicant seeking participation support.	Change introduced during a period of non-participation.	No mechanism in the order addressing inability to participate.

D. PROCEDURAL CONTEXT (NEUTRAL)

Matter	Observation
Timing	The changes identified above were introduced after the conclusion of the trial and during the post-judgment order-drafting phase .
Sequence	The 14 May 2024 draft is the first point at which pensions, the children's education fund, and MPS arrears are substantively altered .
Finalisation	These alterations were carried through into the sealed final order and later slip-rule approval , without reversal.